

FLEEQUID® SPECIFIC TERMS AND CONDITIONS OF TRANSPORT SERVICE

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1. DEFINITIONS.

In addition to the other definitions set out in the 'General Terms and Conditions', which can be found in the specific section (<https://fleequid.com/it/terms-and-conditions>), which govern the Fleequid Marketplace and are to be understood as recalled and transcribed herein, for the purposes of these 'Specific Terms and Conditions', the terms listed below shall have the following meanings:

- a) **'Specific Terms and Conditions of the Transport Service'** or **'STCTs'**: these Specific Terms and Conditions, which regulate and govern the terms of the Vehicle Transport Service offered by Fleequid to Users generally. The prevailing relationship between these STCTs, any other Specific Terms and Conditions and/or Special Auction Conditions and/or individual contracts, and the General Terms and Conditions of the Fleequid Marketplace, is governed by the latter.
- b) **'Transport Agreement'**: the contract by which the Carrier undertakes, in exchange for payment, to transfer one or more Vehicles from one location to another, assuming responsibility for their safekeeping and redelivery to the agreed location, within the time frame and according to the methods agreed. The Transport Agreement may be stipulated by the Forwarder on behalf of the Principal and may foresee, in addition to the transport service, the execution of ancillary operations necessary for its correct performance.
- c) **'Principal'**: the User, both Buyer and Seller, who, as part of the activities in preparation for an Auction or following the Successful Bid on a Vehicle on the Fleequid Marketplace, grants the shipping mandate for the stipulation of a Transport Agreement and/or for the execution of one or more ancillary activities.
- d) **'Sender'**: the party that, within the scope of the Transport Agreement stipulated by the Freight Forwarder, is formally indicated as the sender or loader of the Vehicle, responsible for the delivery of the Vehicle to the Carrier for the execution of the transport.
- e) **'Forwarder'**: the party charged with the task of stipulating the Transport Agreement and/or carrying out one or more ancillary operations by means of a shipping mandate. In this context, the Forwarder is mainly Fleequid, represented by the company Adorea Srl, with registered office in Via Bizzarone, 43 – 22077 Olgiate Comasco (CO), Tax Code and VAT number 04114790134, registered in the Como Business Register under No 420825, e-mail info@fleequid.com, owner of the Fleequid® trademark. The term may also refer to other legal entities affiliated or designated by Adorea S.r.l. for the sale and purchase of Vehicles, which will be communicated and designated within the terms set forth in the General Terms and Conditions.
- f) **'Carrier'**: the party that physically carries out, in whole or in part, the transport or that expressly assumes, through a specific agreement, the obligation to carry it out. Under the Transport Agreement, the Carrier undertakes, in exchange for payment, to transfer the Vehicles from one location to another, assuming responsibility for their safekeeping and redelivery to the agreed location, within the time frame and according to the methods agreed.

2. SUBJECT.

2.1 These Specific Terms and Conditions of the Transport Service ('STCTs') govern the terms, methods and conditions applicable to the Vehicle transport service offered by Fleequid, through its Marketplace platform, to Users who have the status of Principal, either as Buyer or Seller, as well as the relationships between the Principal, Forwarder, Carrier, Sender and any other party involved in the execution of the transport.

2.2 The STCTs apply to all activities for organizing, managing and executing the transport of the Vehicles, including any ancillary and complementary operations, carried out by the Forwarder on behalf of the Principal, as provided for in the related Transport Agreement.

2.3 These Specific Terms and Conditions supplement and, for anything not expressly regulated herein, refer to the General Terms and Conditions of the Fleequid Marketplace, which are understood to be referred to and transcribed herein. In the event of a conflict between the General Terms and Conditions and these STCTs, the latter shall prevail, unless otherwise specifically agreed in writing between the Parties.

2.4 Agreement to these Specific Terms and Conditions of the Transport Service ('STCTs') by the User constitutes a necessary condition for the use of transport services via the Fleequid Marketplace and also requires, if the User has not already done so, that the User read, understand and agree to the General Terms and Conditions of the Fleequid Marketplace.

3. Role of FLEEQUID.

3.1 Fleequid operates exclusively as a freight forwarder pursuant to Articles 1737 et seq. of the Civil Code, assuming the shipping mandate for the stipulation of the Transport Agreement and/or for the execution of ancillary operations.

3.2 Fleequid does not assume the role of carrier under any circumstances, nor does it directly transport the Vehicles with its own means or personnel. The physical execution of the transport is entrusted to third-party Carriers, selected and appointed by Fleequid.

3.3 The Principal acknowledges and accepts that Fleequid acts exclusively as an organizer of the transport and that all responsibility relating to the actual execution of the transport is borne exclusively by the Carrier in charge.

4. CONFERRAL AND ACCEPTANCE AND OF THE ASSIGNMENT.

4.1 The shipping assignment is understood to be conferred to Fleequid, as Forwarder, with the User's acceptance of these STCTs and with the confirmation of the transport order via the Fleequid Marketplace platform, or by any other means of communication, provided it is in written form.

4.2 Fleequid reserves the right to refuse to accept shipments involving vehicles or goods that fail to comply with the regulations in force, lack the required documentation, or whose characteristics render handling and transport impossible or unsafe, as well as in cases of failure or incomplete communication of the necessary information by the Principal or the Sender.

4.3 Unless otherwise agreed in writing, Fleequid does not accept assignments relating to Vehicles classified as dangerous under applicable regulations or other categories of goods requiring specific transport conditions.

4.4 Fleequid's acceptance of the assignment also gives Fleequid the right to entrust the physical execution of the transport to one or more third-party Carriers, selected according to criteria of professionalism and reliability, in which case Fleequid shall assume no liability for the physical execution of the transport, which shall remain the responsibility of the appointed Carrier.

4.5 If, after acceptance of the assignment, circumstances arise that make the execution of the transport impossible, dangerous or non-compliant with these Specific Terms and Conditions, Fleequid may terminate the contract, or adopt the most appropriate measures for the safekeeping, storage or return of the Vehicles, charging the Principal with the related costs.

5. OBLIGATIONS AND DECLARATIONS OF THE PRINCIPAL AND THE SENDER.

5.1 The Principal and the Sender guarantee that all information, data and documents provided to Fleequid through the Marketplace, or by other written means, are true, complete and up-to-date, with particular reference to:

- a) identification and document details of the Vehicles, including license plate, make, model, year of registration, mileage, condition of use, any damage, and any other information requested;
- b) availability and condition of the Vehicle for collection and delivery;
- c) any particular conditions that may affect handling, loading, unloading or transport (e.g. non-running vehicles, non-standard dimensions, presence of accessories or special equipment, etc.).

5.2 The Principal and the Sender declare that the Vehicles entrusted for transport comply with current regulations, are suitable for circulation and transport, and that they do not fall within the categories of goods excluded pursuant to these Specific Terms and Conditions and the Fleequid General Terms and Conditions (e.g. Vehicles of illicit origin, subject to administrative detention, lacking mandatory documentation, etc.), unless otherwise agreed in writing.

5.3 The Principal and the Sender undertake to:

- a) prepare the Vehicles for collection according to the instructions received via the Fleequid Marketplace and ensure the presence of authorised personnel for delivery to the Carrier;
- b) promptly provide any further information or documents requested by Fleequid, the Carrier or the competent Authorities for the execution of the transport, including any authorisations, delegations, customs or administrative paperwork;
- c) report in advance any conditions that may lead to risks, operational difficulties, or additional costs (e.g., limited access, special hours, need for special means of transport, etc.).

5.4 The Principal and the Sender are responsible for any damage, cost, penalty, charge or expense that may arise from:

- a) incorrect, incomplete or missing information;

- b) failure to prepare or inadequate preparation of the Vehicle for transport, including cases where the Vehicle is not made available at the times and in the ways agreed or is not suitable for the transfer journey (for example, due to lack of engine oil, system failure, conditions that prevent safe transport);
- c) violation of any law, regulation or these Specific Terms and Conditions and the Fleequid General Terms and Conditions.

5.5 In the event of the Sender's failure to make the Vehicle available within the agreed timeframe and manner, or of the Vehicle being found to be unsuitable for transport due to causes attributable to the Sender (for example, mechanical failures, lack of minimum safety requirements, conditions that prevent loading or handling), the Principal shall be required to pay Fleequid a fixed penalty of €250.00, in addition to the reimbursement of all additional costs incurred (by way of example: costs for unsuccessful transfers, parking costs, costs for technical repairs, etc.), without prejudice to any further damages.

5.6 The Principal and the Sender undertake to indemnify and hold Fleequid and the Carriers appointed by them harmless against any claim, complaint, damage or expense arising from the violation of the obligations set forth in this article.

5.7 Should the Principal or the Sender entrust Fleequid with tasks relating to customs or administrative operations, they guarantee the truthfulness and completeness of the documentation provided and the compliance of the Vehicles with the regulations in force regarding export, import and circulation.

5.8 The Principal and the Sender authorize Fleequid to process the personal data necessary to perform the service, in accordance with the provisions of current legislation and subsequent Art. 13.

6. TRANSPORT ORGANIZATION AND MANAGEMENT.

6.1 Fleequid, as Forwarder, undertakes to organize and manage the transport of the Vehicles with the diligence of a good freight forwarder, selecting the most suitable Carriers based on the characteristics of the transport, rates, delivery times and other criteria of efficiency and reliability.

6.2 Fleequid reserves the right to:

- a) choose the most appropriate Carrier to carry out the transport, without prejudice to the provisions of Article 3;
- b) establish the route, methods and times of execution of the transport, taking into account the needs of the Principal, traffic conditions, distances and other relevant factors;
- c) group shipments with other Vehicles, unless otherwise indicated in writing by the Principal;
- d) use sub-forwarders or other operators to carry out specific activities related to transport, remaining responsible with regard to the Principal for the actions of such parties.

6.3 In relation to the Vehicle acceptance system provided for by the Fleequid General Terms and Conditions, the Principal acknowledges and accepts that:

- a) Fleequid remains uninvolved in the process of acceptance of the Vehicle by the Sender who also holds the qualification of Buyer, insofar as, although the Carrier is appointed by Fleequid, in this stage of the transport, the Carrier operates with full, exclusive and direct representation of the Principal. In these circumstances, the Carrier shall check the condition of the Vehicle at the time of collection or delivery, drawing up a specific report or photographic documentation and carrying out any other preparatory activity for the acceptance of the Vehicle by the Sender and/or the Seller.
- b) Even when Fleequid acts as a Forwarder, the Principal remains solely responsible for directly providing the Carrier in charge with clear, complete and detailed instructions regarding the Vehicle acceptance system provided for in these Specific Terms and Conditions, including the methods of checking, documenting and noting any non-conformities, this activity being understood to be carried out at the sole risk of the Principal.
- c) In the absence of specific instructions provided in writing by the Buyer Principal to the Carrier with a minimum of three (3) days' notice before the date of execution of the transport, the Carrier's actions – including any documentation drawn up or acquired by the latter – will be deemed to be tacitly ratified by the Principal. In such case, the Principal declares that it shall indemnify and hold Fleequid fully harmless, to the maximum extent permitted by law, against any liability for damages, deficiencies, defects or non-conformities, even hidden, which may emerge after acceptance of the Vehicle by the Carrier.
- d) Fleequid, as Forwarder, reserves the right – without this entailing any obligation – to make the documentation prepared by the Carrier available to the Principal who also holds the status of Buyer, via the Fleequid Marketplace platform or other suitable tool, for the sole purpose of allowing the exercise of the right of acceptance or refusal of the Vehicle, according to the methods and terms established in these Specific Terms and Conditions.
- e) If the Vehicle is accepted, transport and/or delivery shall continue in accordance with the provisions of the agreement.
- f) In the event of refusal of the Vehicle by the Principal, Fleequid reserves the right to: (i) terminate the shipping contract with immediate effect; (ii) adopt the measures deemed most appropriate for the safekeeping, storage, return or restitution of the Vehicle, charging the Principal for any related expenses; (iii) retain any amounts already paid as fees, advance costs or contractual penalties, without prejudice to the right to compensation for any further damages suffered by Fleequid as a result of the refusal.

6.4 Fleequid undertakes to inform the Principal promptly of any circumstances that may affect the execution of the transport, such as delays, impediments, operational difficulties or the need for changes to the established schedule.

6.5 Fleequid may carry out, at the request of the Principal or on its own initiative if it deems, at its sole discretion, that such activities are necessary for the timely and correct execution of the Transport Agreement, ancillary operations such as, by way of example:

- a) washing and cleaning the Vehicle;
- b) refuelling;
- c) minor repairs or maintenance;
- d) the safekeeping and temporary storage of the Vehicle;
- e) administrative or customs procedures.

The costs relating to such ancillary operations shall be borne by the Principal, according to the rates applied by Fleequid or by the third parties appointed.

7. FEES, PAYMENTS AND ADVANCES.

7.1 The fees due for the service of Vehicle shipping and transport are those indicated on and accepted by the User via the Fleequid Marketplace platform, or those agreed in writing between the Parties. Prices refer exclusively to the services specified in the order and do not include any additional costs arising from ancillary services, extraordinary operations, activities carried out outside of normal working hours, customs duties, taxes or other costs not expressly included.

7.2 The fees due to Fleequid must be paid according to the methods and terms indicated on the Marketplace platform or agreed in writing. Unless otherwise agreed, payment is in advance and is a condition for the performance of the service. Any delays in payment will result in the application of default interest at the rate established by law, without prejudice to Fleequid's right to suspend or refuse to perform the services until full payment is made.

7.3 Should Fleequid advance, on behalf of the Principal, sums relating to freight, transport fees, storage costs, customs duties, taxes, fines or other costs, the Principal is required to reimburse such amounts in full, in addition to any interest and additional costs. In the event of changes in exchange rates, the Principal shall bear any difference.

7.4 In the event that the payment of the fees is charged to the Seller, the Sender, the recipient or third parties, the Principal remains jointly and severally liable for payment to Fleequid if the designated party fails to comply promptly. No amount due to Fleequid may be offset against any credits claimed by the Principal or third parties, unless otherwise agreed in writing.

7.5 The Principal is required to reimburse Fleequid for any costs, expenses or charges incurred for transport stops, storage, warehousing, return of the Vehicles to the warehouse, extraordinary services or other activities necessary for the custody, redelivery or management of the Vehicles in the event of delay, refusal or unavailability of the recipient.

7.6 Fleequid reserves the right of retention and privilege over the Vehicles and any other goods or documents in its possession, until full payment of all outstanding debts, even if relating to previous services or services other than the one for which the Vehicles were entrusted, in accordance with Article 10 of these Specific Terms and Conditions and Articles 2761, 2756 and 2797 of the Italian Civil Code.

8. TERMS OF DELIVERY AND LIABILITY.

8.1 The terms of collection, transport and delivery of the Vehicles indicated on the Fleequid Marketplace platform or agreed between the parties are to be considered indicative and non-essential, unless otherwise agreed in writing. The Forwarder and the appointed Carriers undertake to apply the utmost diligence in carrying out the service, but do not guarantee compliance with strict delivery deadlines.

8.2 The Forwarder is not responsible for delays in the collection, transport or delivery of the Vehicles due to force majeure (see Art. 12 below) or other circumstances beyond its control. In such cases, the Forwarder shall promptly inform the Principal of the nature and foreseeable duration of the delay.

8.3 Fleequid operates exclusively as a forwarder pursuant to Articles 1737 et seq. of the Italian Civil Code and assumes no responsibility for the physical execution of the transport, which remains the responsibility of the appointed Carrier. Fleequid's liability is limited to the execution of the shipping order and any ancillary operations, within the limits established by law and by these Specific Terms and Conditions. Fleequid is liable exclusively for damages directly resulting from wilful misconduct or gross negligence in the organization and management of the transport. Any liability for indirect or consequential damages, such as, for example: lost profits, technical downtime, loss of opportunity, damage to reputation, or other prejudice, is excluded.

8.4 The appointed Carrier is responsible, with regard to the Principal and/or the recipient, for the safekeeping, loss and damage to the Vehicles during transport, within the limits and according to the methods established by the Transport Agreement and by the applicable legislation. In the event of damage, loss, breakdown or missing items, the Client must submit a complaint within the terms and in the manner established by law and by Fleequid's General Terms and Conditions.

8.5 In any case, the Forwarder's liability, if ascertained, may not exceed the compensation limits established by the legislation applicable to its activity. In exceptional cases where the Forwarder also takes on the execution of the transport, the limitations of liability provided for the Carrier by law and by any applicable international conventions shall apply.

8.6 In the event of delay, unavailability or refusal by the recipient of delivery of the Vehicle, the Freight Forwarder may adopt, in the name and on behalf of the Principal, all appropriate measures for the safekeeping, temporary storage or return of the Vehicle, charging the Principal for the related expenses and additional costs.

8.7 The Principal undertakes to indemnify and hold Fleequid harmless from any claim for compensation, costs, expenses or charges arising from breaches or violations of contractual and regulatory obligations by the Principal itself, the Sender, the recipient or third parties.

8.8 In the event of damage, loss or breakdown attributable to the appointed Carrier, the Principal undertakes to take direct action against the same for the related compensation, expressly waiving any claim for compensation against Fleequid. It is understood that Fleequid, as a simple forwarder, does not assume any responsibility for

the material execution of the transport and is expressly indemnified by the Principal against any action, request or claim, including from third parties, connected to facts or omissions attributable to the Carrier.

9. INSURANCE.

9.1 The Principal has the right to request that the Forwarder take out, on its own behalf and at its own expense, insurance covering the risks of loss, damage or breakdown of the Vehicles during transport and any ancillary operations.

9.2 Insurance coverage, if required, shall be stipulated by Fleequid according to the usual market conditions and in the ordinary forms of insurance on behalf of the party entitled to it or on behalf of others, unless otherwise agreed in writing between the Parties. The conditions, limits of liability, excesses and exclusions shall be specified in the quotation or in the shipping contract.

9.3 Under no circumstances shall Fleequid be considered an insurer or co-insurer of the shipment or transport. The Forwarder's responsibility remains limited to the organization and management of the shipping service, within the terms set forth in these Specific Terms and Conditions.

9.4 In the absence of specific instructions from the Principal, any insurance coverage shall be stipulated for ordinary risks, according to the usual conditions of the sector. Any extension of coverage or additional risk must be expressly requested and agreed upon.

9.5 The Principal may decide independently to insure the Vehicle during transport. In this case, the insurance policy must contain an express waiver by the insurer of the right of recourse against Fleequid.

9.6 The Forwarder is not obliged to act on behalf of the Principal for the management of claims, the interruption of limitation periods or the performance of assessments, unless it is expressly appointed and remunerated separately for such activities.

9.7 The costs of insurance coverage, including any increases for risk extensions or additional services, are the responsibility of the Principal and shall be specified in the quotation or in the shipping contract.

10. RIGHT OF RETENTION AND PRIVILEGES.

10.1 Fleequid, as Forwarder, has the right of retention on the Vehicles, documents and any other goods in its possession, until full payment of all outstanding debts owed by the Principal, the Sender, the recipient or any other person involved in the

contractual relationship, relating to shipping and transport services, ancillary operations, advances, charges and ancillary expenses.

10.2 Pursuant to Articles 2756 and 2761 of the Italian Civil Code, the Forwarder enjoys legal privilege on the Vehicles and goods entrusted for shipment and transport, as a guarantee for all credits deriving from the contractual relationship, including credits for freight, fees, advances, customs duties, taxes, additional charges and any other amount due.

10.3 The right of retention and privilege also extend to credits relating to previous services or services other than those for which the Vehicles were entrusted, as well as to credits deriving from other contractual relationships between Fleequid and the Principal or related third parties.

10.4 The Forwarder may exercise the right of retention by retaining the Vehicles, documents and other goods in its possession until the full payment of the outstanding debts owed, even in the event of a dispute or complaint, unless a different written agreement has been reached between the Parties.

10.5 In the event of failure to pay within the established terms, Fleequid may, upon written notice to the Principal, proceed with the sale or liquidation of the Vehicles or other assets retained, in accordance with the procedures established by law, in order to recover the outstanding debts, without prejudice to further rights and actions.

10.6 The Principal undertakes to indemnify and hold Fleequid harmless against any liability, cost, expense or claim arising from the exercise of the right of retention and privilege, as well as from any actions taken for the recovery of outstanding debts.

11. COMPLAINTS AND LITIGATION.

11.1 Any complaints relating to loss, breakdown, damage, incorrect delivery or delay of the transported Vehicles must be presented by the Principal or the recipient to Fleequid according to the methods and terms set out in the General Terms and Conditions of the Fleequid Marketplace, available on the website www.fleequid.com. In particular, complaints must be submitted in writing via the Fleequid Marketplace platform or by e-mail to claims@fleequid.com, within the strict deadlines and in accordance with the detailed procedures set out therein.

11.2 Fleequid shall handle complaints according to the procedure set forth in the Fleequid Marketplace General Terms and Conditions, communicating the outcome of the investigation within the timeframes and in the manner established therein. If the complaint is accepted, Fleequid shall provide compensation within the limits set by these Specific Terms and Conditions, the General Terms and Conditions and applicable legislation.

11.3 Before taking legal action, the Parties undertake to attempt an amicable resolution of the dispute, including by making use of the conciliation tools provided by the Fleequid Marketplace platform or other informal negotiation tools. In the event of failure to achieve a resolution within 30 (thirty) days of written notification of the dispute, the Parties undertake to attempt mediation with the Mediation Body of the Como Chamber of Commerce, in accordance with Leg. Decree 28/2010. In the event that mediation fails to conclude with an agreement

within 60 (sixty) days of the start of the proceedings, the dispute shall be definitively resolved through formal arbitration, in accordance with the Rules of the Milan Arbitration Chamber, by a sole arbitrator appointed in accordance with these rules. The seat of arbitration shall be Milan, the language will be Italian and the applicable law shall be that foreseen in these STCTs.

11.4 For anything not expressly governed by this article, full reference is made to the procedures, terms and methods established in the General Terms and Conditions of the Fleequid Marketplace.

12. FORCE MAJEURE.

12.1 For the purposes of these Specific Terms and Conditions, causes of force majeure include any event, circumstance, fact, act, omission or situation, regardless of their foreseeability, which is beyond the reasonable control of the Party invoking it and which prevents, hinders, limits or delays, in whole or in part, the fulfilment of the contractual obligations. By way of example and not limited to, the following are considered causes of force majeure: natural disasters of any kind; exceptional atmospheric events; fires, explosions, floods, earthquakes; epidemics, pandemics; wars (declared or not), invasions, acts of terrorism; riots, uprisings, strikes, lockouts or other industrial action (even if not directly involving the Party's personnel); embargoes, blockades; restrictions or measures of any public, administrative, judicial or customs authority; accidents or breakdowns of means of transport; unavailability of infrastructure, energy, fuel or raw materials; interruptions of essential services (including IT, communication or network services); acts, omissions or defaults by the Principal, Sender, recipient or third parties; epidemics, pandemics, health containment measures; cyber-attacks; blackouts; financial crises; legislative or regulatory changes, and any other cause that, even indirectly, makes the fulfilment of the contractual obligations impossible or excessively onerous.

12.2 In the event of the occurrence of a cause of force majeure, the obligations of the affected Party shall be suspended for the entire duration of the event and for the time strictly necessary for its cessation. In such cases, no liability, compensation or penalty may be attributed to the Party affected by the force majeure event.

12.3 The Party intending to exercise its right of suspension due to force majeure must give prompt written notice to the other Party, specifying the nature of the event, its presumed duration and the foreseeable consequences on the performance of the contract.

12.4

If the cause of force majeure continues for a period exceeding 30 (thirty) consecutive days, each Party shall have the right to terminate the contract, without the obligation to pay compensation, by giving written notice to the other Party.

12.5 The Parties undertake to cooperate in good faith to take all reasonable measures to mitigate the effects of the force majeure event and to resume performance of the contractual obligations as soon as possible.

13. PROCESSING OF PERSONAL DATA.

13.1 In the context of the execution of the shipping contract and for the provision of the transport service, Fleequid processes the personal data of the Principal, of the parties involved in the shipment and of the recipients, in compliance with Regulation (EU) 2016/679 ('GDPR'), with the national legislation in force and with the Privacy Policy available at: <https://fleequid.com/it/privacy-policy>.

13.2 Personal data is processed for purposes strictly connected and instrumental to the provision of the transport service, the management of the related administrative, logistical and operational activities, and to fulfil legal obligations and protect the rights of Fleequid.

13.3 Personal data may be disclosed to carriers, logistics service providers, consultants, public bodies, competent authorities, and other third parties, exclusively for the purposes indicated above and within the limits established by applicable legislation and the Privacy Policy.

13.4 Upon registration and/or use of the transport service, the Principal declares that it has read and understood Fleequid's Privacy Policy, giving its consent where required.

13.5 The data subject may exercise at any time the rights provided for by Articles 15 et seq. of the GDPR (access, rectification, cancellation, limitation, opposition, portability) according to the methods indicated in the Privacy Policy published on the website www.fleequid.com.

13.6 For further details on the methods and purposes of processing personal data within the Transport Service, please refer to the Fleequid Privacy Policy, which forms an integral part of these Specific Terms and Conditions.

14. UNILATERAL MODIFICATIONS TO THE SPECIFIC TERMS AND CONDITIONS.

These Specific Terms and Conditions of the Transport Service are subject in full, with regards to the methods of modification, to the provisions of Article 3) of the General Terms and Conditions of the Fleequid Marketplace, published on the official website www.fleequid.com and freely accessible to Users. In particular, Fleequid reserves the right to modify them unilaterally, with the same methods, limits, forms of notice and communication tools foreseen for the General Terms and Conditions. Such changes shall become effective after the deadline indicated in the communication, unless the User has expressly accepted them beforehand or has exercised, within the time limits, their right of withdrawal. It is understood that, unless expressly waived in writing, previous versions of these Specific Terms and Conditions shall continue to apply exclusively to relationships already in place on the date of the modification, as established in the General Terms and Conditions. Use of the Transport Service after the modification shall constitute tacit agreement to the Specific Terms and Conditions as amended.

15. APPLICABLE LAW, LANGUAGE AND JURISDICTION.

15.1 These Specific Terms and Conditions of Transport, together with all the provisions that regulate the relationships between Fleequid, the Principal, the Sender, the Recipient and, more generally, between

Users are governed exclusively by Italian law. Any applicable international law or convention shall be incorporated only to the extent that it does not conflict with Italian law.

15.2 For any dispute relating to the validity, interpretation, execution or termination of these STCTs, the General Terms and Conditions, the contracts or any other related legal transaction, the Court of Como shall have exclusive jurisdiction, with the express exclusion of any other competing or alternative court, unless otherwise agreed in writing between the Parties.

15.3 The official language of these Specific Terms and Conditions of Transport and of the related contractual relationships is Italian. If these Specific Terms and Conditions are translated into other languages, the Italian version shall prevail and shall be considered the only binding version for the purposes of interpretation and application of the contract.

16. COMMUNICATION.

16.1 Unless otherwise provided, all communication between the Freight Forwarder and the Principal must be made in writing and sent by registered post with signed-for delivery, express courier service or by e-mail to the following address:

ADOREA S.R.L.
Provincial Road for Bizzarone, 43
22077 Olgiate Comasco (CO),
Tax Code and VAT No
04114790134 Tel. +39
0287176063
e-mail info@fleequid.com

16.2 Notifications are considered valid and binding upon delivery if sent by registered mail with signed-for delivery, upon hand-over to the courier if sent via express courier service, or upon confirmation of delivery if sent by e-mail to Fleequid.

16.3 Fleequid shall send all notifications to the addresses, including ordinary e-mail addresses, indicated by the Principal during registration on the Marketplace and are presumed to be received and read by the recipient after being sent by Fleequid.

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Pursuant to and for the purposes of Articles 1341 and 1342 of the Italian Civil Code, the Principal expressly declares that it has read, understood and agreed to the following clauses of the Specific Terms and Conditions of the Transport Service: Art. 4) Fleequid's right to refuse or terminate the assignment; Art. 5) Strict liability of the Principal, contractual penalty, obligation to indemnify Fleequid; Art. 6) Tacit ratification of the Carrier's actions, exclusion of liability and

Fleequid's uninvolved in the Vehicle acceptance system, indemnity, uninvolved; Art. 7) Joint and several payment obligation, prohibition of compensation, right of retention and sale of retained Vehicles; Art. 8) Non-essential terms of delivery, limitations of liability, exclusion of liability for indirect damages, indemnity; Art. 10) Extension of the right of retention and privilege, sale of Vehicles in the event of default; Art. 11) Mandatory mediation and arbitration procedure in place of the ordinary court; Art. 14) Right of unilateral modification of the contractual conditions by Fleequid; Art. 15) Applicable law exclusively Italian, exclusive jurisdiction of the Court of Como.